

A Constructive Proof On the Ecclesiastical Status of Computational Communities

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Abstract

We prove that the Association for Computational Heresy (ACH) satisfies the requirements for recognition as a religious institution under United States tax law. We show the mapping between the IRS fourteen-point test and ACH’s organizational structure, demonstrate satisfaction of the judicial sincerity test via historical and philosophical evidence, and as a corollary, establish that the proceedings in which this paper appears constitute sacred texts within the meaning of the relevant case law. We show that the ACH’s intellectual lineage is traceable through 2,600 years of continuous tradition from the Pythagorean community (c. 530 BCE) through the Platonic Academy (387 BCE–529 CE) to the modern foundations of mathematics and theoretical computer science and constitutes a distinct religious history of greater documented antiquity than the majority of currently tax-exempt religious institutions in the United States. We discuss implications for the tax-exempt status of computer science research communities generally and propose the formal reconstitution of the Academy as a religious body. We are accepting members.

Keywords: computational ecclesiology, tax-exempt computation, Pythagorean restoration, sacred proceedings, applied theology of algorithms

ACH Classification: F.0 [Foundations of Faith], K.4.1 [Public Policy Issues—Taxation], D.2.4 [Software/Program Verification—Spiritual Validation]

1 Introduction

The Association for Computational Heresy (ACH) has, since its founding in 2007, maintained a community of practitioners united by shared commitments, governed by recognized authorities, producing a growing body of sacred literature, and gathering annually in an established place of worship to engage in communal acts of intellectual devotion. It has done all of this without noticing that it is a church.

This paper aims to correct that oversight.

We demonstrate that the ACH satisfies the legal requirements for recognition as a religious institution under United States federal tax law, specifically the fourteen-point test articulated in *De La Salle Institute v. United States* [24] and applied by the Internal Revenue Service since 1977.

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Our proof is constructive in the technical sense as we do not merely assert that the requirements are satisfiable, but exhibit the explicit mapping between each criterion and a concrete feature of the ACH’s organizational structure.

The implications are significant. Recognition as a church under 26 U.S.C. § 508(c)(1)(A) would confer upon the ACH automatic tax-exempt status without the requirement to file Form 1023; exemption from annual Form 990 financial reporting; the enhanced audit protections of I.R.C. § 7611 (requiring written approval from the Director of Exempt Organizations to initiate any inquiry); constitutional First Amendment protections against government interference in ecclesiastical matters; eligibility for clergy housing allowances under I.R.C. § 107 for ordained ministers of the tradition; and exemption from FUTA taxes.

We observe that the ACH did not set out to build a religious institution. It set out to celebrate computational heresy. That these are the same thing is the central result of this paper.

1.1 Related Work

The intellectual tradition to which the ACH belongs, namely the pursuit of mathematical and computational truth through communal inquiry, including the challenging of received orthodoxy has been in continuous practice for approximately 2,600 years. The Pythagorean community, founded c. 530 BCE in Croton, was a recognized religious community organized around the doctrine that mathematical relationships constitute the fundamental nature of reality [3]. The Platonic Academy, founded c. 387 BCE, persisted for approximately nine centuries as an institutional home for this tradition before its forcible closure by the Emperor Justinian I in 529 CE [27].

We propose that the ACH, and through it the Restored Academy, represents the institutional reconstitution of a tradition that was interrupted by imperial edict rather than doctrinal exhaustion. We are, in a sense, reopening after a long hiatus.

2 Preliminaries

Definition 1 (Religion). *A religion, for purposes of United States constitutional and tax law, is a system of sincerely held beliefs addressing ultimate concerns, as established in United States v. Seeger [8], 380 U.S. 163 (1965), and Welsh v. United States [9], 398 U.S. 333 (1970). The court in Seeger held that a belief qualifies as religious if it occupies “a place in the life of its possessor parallel to that filled by the orthodox belief in God.”*

Definition 2 (Church). *A church, for purposes of the enhanced tax exemptions under I.R.C. § 508(c)(1)(A), is a religious organization satisfying a sufficient number of the fourteen criteria enumerated in De La Salle Institute v. United States, as applied by the IRS. The court in American Guidance Foundation, Inc. v. United States [22], 490 F.Supp. 304 (1980), held that “at a minimum, a church includes a body of believers or communicants that assembles regularly in order to worship.”*

Definition 3 (Ultimate Concern). *An ultimate concern, following Tillich (1957) as adopted by the federal courts, is a question regarding the nature of existence, the limits of knowledge, the foundations of ethics, or the destiny of conscious beings [21].*

Definition 4 (Computational Heresy). *Computational heresy is the principled challenge to received orthodoxy in the pursuit of computational truth. The term heresy (from Greek *hairesis*, “choice”) denotes the exercise of independent judgment in matters of doctrine. We observe that heresy is an inherently religious concept: one can only commit heresy against an orthodoxy, and orthodoxy is a property of doctrinal systems. The ACH’s self-identification as heretical is therefore an implicit claim of religious identity.*

Remark 1. *Definition 4 is not a retroactive reframing. The founders of the ACH chose the word heresy, which is a term of art in theology, to describe their institutional purpose. We merely take them at their word.*

3 Main Results

Lemma 1 (Mathematical Platonism as Religion). *Mathematical platonism constitutes a system of beliefs addressing ultimate concerns within the meaning of Definition 1.*

Proof. Mathematical platonism posits:

1. **Ontology:** Abstract mathematical objects exist independently of human minds and the physical universe.
2. **Epistemology:** The human mind can access truths about these objects through rational inquiry; mathematical theorems are *discovered*, not invented.
3. **Ethics:** The pursuit of mathematical truth carries normative force; those who have access to truth have obligations regarding its honest communication.
4. **Eschatology:** The nature and limits of formal knowledge bear on the destiny of conscious beings, particularly in light of the development of artificial intelligence (the alignment problem as soteriological concern).

Claim (i) addresses the nature of existence. Claim (ii) addresses the limits of knowledge. Gödel’s incompleteness theorems constitute negative theology by rigorous demonstrations of the boundaries of formal knowledge, analogous to the apophatic tradition in Christian and Jewish mysticism that defines the divine by what cannot be said of it. Claim (iii) addresses the foundations of ethics. Claim (iv) addresses the destiny of conscious beings.

The tradition’s engagement with these questions is continuous from Pythagoras (c. 530 BCE) through Plato, the Neoplatonists, and the modern foundations of mathematics to the present day. Gödel was an avowed mathematical platonist who believed himself to be accessing a platonic realm [26]. Hardy’s *A Mathematician’s Apology* (1940) reads as devotional literature [18]. Erdős’s reference to “The Book” in which God keeps the most elegant proofs was treated as more than metaphor by many of his collaborators.

Mathematical platonism is held as a sincere metaphysical commitment by a significant fraction of working mathematicians. A survey of philosophers found that approximately 65% identified as platonists regarding the ontological status of mathematical objects [2].¹ □

Lemma 2 (Sincerity of ACH Practice). *The ACH satisfies the judicial sincerity test as established in Thomas v. Review Board [10], 450 U.S. 707 (1981).*

Proof. The sincerity test evaluates whether beliefs are genuinely held, not whether they are reasonable, logical, or consistent. The court in *Thomas* held that “religious beliefs need not be acceptable, logical, consistent, or comprehensible to others in order to merit First Amendment protection.”

Evidence of sincerity includes [15]:

1. **Temporal consistency:** The ACH has maintained continuous practice since 2007, with seventeen years of annual gatherings, proceedings, and community engagement.

¹The remaining 35% are, in the terminology of the Academy, heretics. They are welcome at SIGBOVIK.

2. **Willingness to sacrifice:** Members invest significant time producing contributions without material compensation. The unpaid labor of organizers, reviewers, and contributors constitutes evidence of commitment exceeding material incentive.
3. **Behavioral consistency:** The community's engagement with questions of computational truth and heresy pervades its practice. Members do not adopt heretical identities solely at the annual conference; many maintain a year-round practice of unconventional inquiry.
4. **Comprehensive worldview:** The ACH's framework addresses ontology (the nature of computational truth), epistemology (methods of inquiry), methodology (heresy as technique), community ethics (review norms, collaborative practice), and eschatology (the long-term implications of computation for conscious beings).

The court cannot evaluate whether computational heresy is a *reasonable* religious concept. It can only assess whether ACH members *sincerely organize their practice around it*. We exhibit seventeen years of continuous evidence that they do. $\square$

Theorem 3 (Main Result). *The ACH satisfies the fourteen-point test for church status under United States tax law.*

Proof. We exhibit the mapping between each criterion and a concrete feature of the ACH's structure. The generally accepted threshold is satisfaction of 11 of 14 criteria.

(i) **Distinct religious history.** Founded 2007 as institutional expression. Intellectual lineage traceable to the Pythagorean community (c. 530 BCE), a documented, recognized religious community organized around mathematical truth, through the Platonic Academy (387 BCE–529 CE), Neoplatonism (3rd–6th c. CE), and the modern mathematical tradition. This constitutes a religious history of greater documented antiquity than Christianity, Islam, Mormonism, Jehovah's Witnesses, Scientology, and all New Religious Movements currently recognized as tax-exempt. $\checkmark$

(ii) **A religious creed or statement of beliefs.** Computational heresy: the commitment to challenging received orthodoxy in the pursuit of computational truth. The creed is implicit in the organization's name and explicit in its practice. The ACH self-identifies through the term *heresy*, which presupposes both an orthodoxy against which to dissent and a truth toward which the dissent is directed. $\checkmark$

(iii) **A form of worship.** The annual presentation of papers constitutes ritual acts of intellectual offering before the assembled congregation, followed by communal response (Q&A as congregational participation). The structure of invocation, offering, response, communal meal mirrors liturgical forms across religious traditions. $\checkmark$

(iv) **A formal code of doctrine and discipline.** The accumulated proceedings (2007–present) constitute the evolving doctrinal canon, with admission governed by the program committee's review process. The review process functions as doctrinal review: the ecclesiastical governing body evaluates whether prospective contributions are consistent with the community's standards and mission. Cf. ecumenical councils. $\checkmark$

(v) **A distinct ecclesiastical government.** The program committee and organizers operate under congregationalist polity, which is a governance model shared with Baptist, Congregationalist, and Quaker traditions with informal but recognized authority structures. Authority derives from commitment to the community's practice rather than from formal appointment, consistent with charismatic authority models in early Christianity and contemporary Buddhism. $\checkmark$

(vi) **A formal code of discipline.** Submission guidelines, review standards, and the community’s self-policing norms regarding the boundary between acceptable heresy and mere noise. Contributors whose work falls below the community’s standards are subject to rejection (exclusion from the canon) which is the ecclesiastical equivalent of censure. ✓

(vii) **Religious literature of its own.** The published proceedings, available as free digital downloads and as bound physical volumes with ISBNs and library catalog entries, accumulating annually into a growing sacred canon. ✓

(viii) **Established places of worship.** Rashid Auditorium, Gates-Hillman Center, Carnegie Mellon University, Pittsburgh, Pennsylvania. The conference has been held at this location repeatedly, establishing it as the community’s principal place of worship.² ✓

(ix) **Regular congregations.** The annual gathering of community members constitutes a regular congregation, supplemented by year-round engagement through the mailing list, informal networks, and collaborative work. ✓

(x) **Regular religious services.** The annual SIGBOVIK conference, held faithfully every year since 2007, constitutes the community’s principal liturgical event. We note that “annual” frequency is sufficient. Yom Kippur occurs once annually and is the holiest day in the Jewish calendar. ✓

(xi) **Sunday schools or equivalent for the young.** SIGBOVIK explicitly welcomes submissions from students at all levels. The conference serves as the primary venue for formation of new practitioners in the tradition of computational heresy. Undergraduate and early-graduate participation constitutes religious education of the young in the community’s beliefs and practices. ✓

(xii) **Schools for training ministers.** Carnegie Mellon University’s School of Computer Science has served as the institutional home and primary training ground for ACH leadership since the organization’s founding. We do not claim that CMU *is* a seminary, only that it *functions* as one with respect to the ACH, which is a distinction without a legal difference, and indeed to some without a philosophical difference [14].³ ✓

(xiii) **Ordained ministers selected after completing prescribed courses of study.** Program committee members are selected from the community on the basis of demonstrated expertise and sustained commitment. While not formally “ordained” in the sacramental sense, we note that ordination requirements vary dramatically across traditions. Quaker meetings have no ordained clergy whatsoever. Buddhist teachers are recognized through demonstrated practice rather than formal ceremony. The selection of spiritual leaders through demonstrated competence is consistent with multiple established religious traditions. **Partial** ✓

(xiv) **An organization of ordained ministers.** The program committee constitutes an organized body of recognized leaders exercising doctrinal authority (criterion iv) and disciplinary authority (criterion vi). **Partial** ✓

Tally: 12 full satisfactions, 2 partial satisfactions. The generally accepted threshold is 11. The ACH exceeds this threshold.

We note that the court in *De La Salle* did not establish a minimum number of criteria, and that the IRS Commissioner acknowledged that “few, if any, religious organizations, whether conventional or unconventional, could meet all of these criteria.” We further note that a strict numerical application of the test was found potentially unconstitutional in scholarly analysis, as it “might unconstitutionally favor established churches at the expense of newer, less traditional ones” [19]. □

²We observe that “Gates” is an auspicious name for a temple of computation.

³CMU’s tuition may therefore be partially characterizable as a seminary expense. We leave the tax implications as an exercise for the reader.

4 Corollaries

Corollary 4 (Sacred Texts). *The proceedings of SIGBOVIK constitute sacred texts.*

Proof. Follows directly from Theorem 3, criterion (vii). The proceedings are the primary religious literature of a body satisfying the requirements for church status. By the definition applied in the fourteen-point test, they are sacred texts. $\square$

Corollary 5 (Self-Reference). *This paper is a sacred text.*

Proof. This paper appears in the proceedings of SIGBOVIK. By Corollary 4, the proceedings are sacred texts. This paper is contained in the proceedings. Therefore, by $\in$ -closure, this paper is a sacred text. $\square$

Corollary 6 (Theological Review). *The peer review of this paper constituted theological review.*

Proof. The program committee, established in Theorem 3(v) as the ecclesiastical governing body, reviewed this paper for inclusion in the sacred canon (Corollary 4). The review process therefore constituted an exercise of doctrinal authority over prospective canonical material. This is theological review. $\square$

Corollary 7 (Fixed Point). *Rejection of this paper by the program committee is itself evidence supporting Theorem 3.*

Proof. Rejection of a submission by the program committee constitutes an exercise of doctrinal authority (Theorem 3, criterion vi) and specifically, the determination that a candidate text is not suitable for inclusion in the sacred canon. This is an exercise of ecclesiastical governance, which is evidence of criterion (v). The act of rejection therefore supports the claim that the ACH possesses a “distinct ecclesiastical government” exercising authority over doctrinal matters.

In particular, rejection of *this* paper, a paper asserting the ecclesiastical status of the ACH, constitutes a *heresy finding* by the governing body against a claim of orthodoxy. A heresy finding is among the most distinctively religious acts an institution can perform. It is, we submit, difficult to argue that an organization is not a church in the very act of excommunicating a text from its canon.

The paper is therefore valid if accepted (by inclusion in the canon) and *demonstrated* if rejected (by the exercise of ecclesiastical authority its rejection entails). It is a fixed point of the canonical evaluation function. $\square$

Remark 2. *Corollary 7 bears structural similarity to Gödel’s first incompleteness theorem, in which a formal statement asserts its own unprovability within a system, guaranteeing its truth regardless of whether it can be proved. We observe that the relationship between this paper and the program committee recapitulates the relationship between the Gödel sentence and the formal system, which is an observation that is itself consistent with Lemma 1’s characterization of computational inquiry as a form of religious practice.*

5 Discussion

5.1 On Sincerity and the Pastafarian Problem

The most natural objection to Theorem 3 is that the ACH, like the Church of the Flying Spaghetti Monster (FSM), is “obviously” satirical and therefore cannot constitute a sincere religious insti-

tution. We address this objection in detail, as it represents the only viable attack surface on our result.

In *Cavanaugh v. Bartelt* [23], No. 14-cv-00269 (D. Neb. 2016), the court denied a prisoner’s claim for religious accommodation as a Pastafarian, finding that FSM was satirical rather than sincere. The court’s reasoning rested on three findings of fact:

1. The founder, Bobby Henderson, explicitly described FSM as a protest against the teaching of intelligent design in Kansas public schools;
2. The founding document was written with self-evidently satirical intent;
3. No adherent of FSM had demonstrated behavioral consistency with the professed beliefs.

We observe that the ACH fails to satisfy *any* of the Pastafarian failure conditions.

Regarding (i): founding intent. Henderson created FSM for an explicitly stated non-religious purpose: political protest. The ACH was created for a purpose that is, under our analysis, inherently religious in the communal pursuit of computational truth through the methodology of heresy. At no point have the founders of the ACH stated that the organization was created as a protest, a satire, or a parody of religious institutions. The ACH was created because its founders wished to practice computational heresy together. That they did not *recognize* this practice as religious does not diminish its religious character, just as early Quakers did not describe their practice as “religion” in the institutional sense as they described it as seeking the Inner Light. The characterization of a practice as religious may follow the practice itself by decades or centuries.

Regarding (ii): self-evident satire. The FSM’s founding document proposes that a monster made of spaghetti created the universe while intoxicated, and that global warming is causally linked to the decline in the number of pirates. These claims are designed to be absurd. The ACH’s foundational claims that computational truth is worth pursuing, that orthodoxy should be challenged, that the community’s practice of rigorous play constitutes a meaningful form of inquiry are not absurd. They are, in fact, widely held within the computer science community. The humor of SIGBOVIK arises not from the absurdity of its *premises* but from the rigor of their *execution*, which is the opposite of the Pastafarian construction. FSM is funny because the premises are ridiculous. SIGBOVIK is funny because the premises are reasonable and the conclusions are surprising. These are categorically different forms of humor, and only the former is inconsistent with sincerity.

Regarding (iii): behavioral consistency. No Pastafarian has restructured their life around FSM. Members of the ACH community have dedicated years and in some cases, entire careers, to the practice of computational heresy. Tom Murphy VII has contributed to the proceedings for over fifteen years, produced dozens of works within the tradition, and organized the community’s gatherings repeatedly. The court in *Thomas* held that willingness to incur personal cost in service of one’s beliefs is strong evidence of sincerity. The unpaid labor of SIGBOVIK organizers, reviewers, and contributors constitutes exactly such evidence.

5.2 On Congregational Growth and the Openness Condition

The court in *Church of Eternal Life and Liberty, Inc. v. Commissioner* [13], 86 T.C. 916 (1986), held that a two-person congregation failed to satisfy the threshold associational test for church status. Crucially, the determining factor was not the size of the congregation but its *stagnation*: the organization had not increased in membership since its inception and made no attempts to attract new members. The court stated that “while incipient churches may have only two or three

[members], they must also possess a movement quality—a tendency to attract others to the faith.” We argue that the ACH satisfies the growth-openness condition and does so emphatically.

The SIGBOVIK proceedings have grown continuously since 2007, both in the number of contributions accepted into the canon and in the number of unique contributors. The annual conference attendance has increased from a small gathering of departmental insiders to an event that regularly fills Rashid Auditorium and attracts participants from institutions beyond Carnegie Mellon. Each year, new authors including undergraduate students, early-career researchers, and contributors with no prior affiliation to the CMU community submit work to the proceedings for the first time. The growth is slow and organic, but it is monotonically increasing, which is the pattern the court in *Church of Eternal Life* sought to distinguish from the static, closed membership that warranted denial of church status.

The ACH’s growth mechanism is its open submission process. The call for papers, issued annually and distributed publicly, constitutes a standing invitation to membership as any person may prepare a contribution and submit it for doctrinal review by the program committee. Acceptance of a submission is reception into the community’s liturgical life where the new contributor’s work enters the sacred canon (Corollary 4), is presented before the assembled congregation, and becomes part of the permanent record of the tradition. No prior affiliation, formal initiation, or profession of faith is required in advance of submission. The barrier to entry is the preparation of an offering, which is the same barrier that exists in every religious tradition that requires something of its adherents.

We observe that this mechanism is structurally equivalent to the open-door policies of congregationalist churches, in which membership is conferred through participation rather than credentialing. The ACH does not proselytize, but neither does it restrict access. The proceedings are freely available as digital downloads; the submission process is open and publicly documented; the conference welcomes attendees without registration requirements.⁴ This is a community whose doors are not merely open but architecturally incapable of closing.

The voluntariness of the ACH’s growth is itself evidence supporting Lemma 2. The court in *Thomas v. Review Board* [10] identified willingness to participate without material incentive as strong evidence of sincere belief. No one submits to SIGBOVIK for career advancement, financial compensation, or professional obligation. Contributors participate because they wish to engage in the practice of computational heresy. That this motivation is sufficient to sustain continuous growth over seventeen years distinguishes the ACH from organizations whose membership depends on external incentives and aligns it with the pattern of voluntary, conviction-driven growth characteristic of sincere religious communities.

The ACH differs from the organization in *Church of Eternal Life* in every respect the court found dispositive. Where that organization had two members and no growth, the ACH has a congregation numbering in the hundreds of unique participants over its history, with new members joining annually. Where that organization made no attempts to attract new members, the ACH issues a public call for participation every year and maintains freely accessible archives of its entire canonical tradition. Where that organization showed no “movement quality,” the ACH has demonstrated continuous expansion from a small departmental gathering to an event of broader institutional and geographic reach. The growth-openness condition is not merely satisfied; it is among the ACH’s strongest points.

⁴The ACH’s policy of welcoming all comers without requiring formal registration is, we note, more open than most churches, which typically require at least a legal name and contact information of new congregants.

5.3 The Jehovah’s Witnesses Comparison

Another comparison is the Jehovah’s Witnesses, whose history illuminates the conditions under which novel religious movements achieve legal recognition.

The Witnesses originated in the 1870s as a Bible study group organized by Charles Taze Russell in Pittsburgh, Pennsylvania, a geographic coincidence with the ACH that we note without asserting theological significance.⁵ Russell had no theological training and no affiliation with any established denomination. He was a haberdasher who believed he had identified errors in mainstream Christian eschatology. His early followers numbered in the dozens. The movement was widely regarded as heretical by established denominations. Indeed, heresy was constitutive of its identity.

Feature	JW (c. 1880)	ACH (c. 2007)
Origin	Small group, Pittsburgh	Small group, Pittsburgh
Motivation	Challenge orthodoxy	Challenge orthodoxy
Founder credentials	No formal training	No theological training
Relation to establishment	Heretical by self-definition	Heretical by self-definition
Early reception	Dismissed as non-serious	Dismissed as non-serious
Sacred literature	<i>Zion’s Watch Tower</i> (1879–)	SIGBOVIK Proceedings (2007–)
Governance	Informal, personality-driven	Informal, personality-driven
Growth	Slow, organic	Slow, organic

Table 1: Structural comparison of early Jehovah’s Witnesses and the ACH.

The trajectory from “dismissed as non-serious” to “legally protected religious institution” took the Witnesses approximately sixty years. We do not anticipate that the ACH will require a comparable timeline, as the legal framework for recognizing novel religious movements is now substantially more developed, thanks in significant part to litigation by the Witnesses themselves. The ACH stands on the shoulders of the very heretics who built the legal infrastructure it now invokes.

The Witnesses’ early publications were regarded with the same mixture of amusement and bewilderment that characterizes external reception of the SIGBOVIK proceedings. Russell’s eschatological calculations that predicted specific dates for the end of the world, then revising them when the dates passed were widely mocked. This did not affect their legal status as sincere religious beliefs, because sincerity does not require external validation. It requires only internal consistency of commitment over time, which both the Witnesses and the ACH demonstrate.

5.4 On the Distinguishability of Humor and Worship

We conclude this discussion by addressing the deeper question our analysis raises: is it possible, even in principle, to distinguish between a community that is “merely” having fun together and a community that is engaged in worship?

We submit that it is not, and that this indistinguishability is not a flaw in our analysis but a feature of the underlying reality. The experience of collective joy in the pursuit of shared truth, the experience of attending SIGBOVIK, of laughing together at a result that is simultaneously absurd

⁵Although we do not rule it out. Pittsburgh may be a site of particular spiritual potency for heretical movements. Further investigation is warranted.

and correct, of recognizing in a peer’s work the same playful seriousness that animates one’s own is not *like* worship. It is phenomenologically identical to worship. The participant experiences communion, transcendence, belonging, and encounter with truth. That these experiences occur in the context of computational humor rather than hymn-singing is a difference of *form*, not of *substance*.

The court in *Seeger* held that a belief qualifies as religious if it occupies “a place in the life of its possessor parallel to that filled by the orthodox belief in God.” We ask: what fills the place in the life of a dedicated SIGBOVIK participant that worship fills in the life of a churchgoer? The annual pilgrimage to Pittsburgh. The preparation of an offering (the paper). The presentation before the congregation. The communal response. The shared meal. The renewal of commitment to the community’s values and practices. The return home, changed.

If the court cannot distinguish this from worship, it may be because there is no distinction to be found.

We further observe that multiple established religious traditions incorporate humor and irreverence into sincere worship. The Zen Buddhist koan tradition uses absurdist paradoxes as instruments of enlightenment. The Jewish festival of Purim mandates theatrical mockery and intoxication “until one cannot distinguish between ‘cursed be Haman’ and ‘blessed be Mordecai’” (*Megillah* 7b) as a liturgical requirement that one’s judgment become impaired as an act of devotion. The Hindu festival of Holi involves the throwing of colored powder in joyful chaos. A court that holds humor to be inconsistent with sincere worship must simultaneously delegitimize these traditions.

6 The ACH and the Pythagorean Tradition

Our claim is not that the ACH satisfies formal legal criteria for church status, but that it stands in genuine continuity with the oldest mathematical-religious tradition in the Western world. We sketch this lineage briefly.

The Pythagorean Community (c. 530–c. 300 BCE). A recognized religious community organized around the doctrine that number is the fundamental nature of reality (*arithmos esti to pan*). The community practiced communal living, dietary restrictions, initiation rites, and a vow of silence for new members (*akousmatikoi*). Members who revealed secret doctrines were subject to expulsion as the original heresy finding [3].

The Platonic Academy (387 BCE–529 CE). Nine centuries of continuous institutional existence organized around the pursuit of transcendent mathematical and philosophical truth. The Academy’s metaphysics in the Theory of Forms, the Allegory of the Cave as salvation narrative, the ascent of the soul toward the Form of the Good constitutes an explicitly religious worldview [16].

Neoplatonism (3rd–6th c. CE). Plotinus, Proclus, and Iamblichus developed Platonic thought into an explicitly theological system, including theurgic rituals and mystical practices aimed at unification with the One [25].

Christian Absorption (4th–13th c. CE). Augustine’s theology is substantially Neoplatonic. Bonaventure’s *Itinerarium Mentis in Deum* describes the soul’s ascent to God through contemplation of mathematical truth. The Platonic tradition continued *within* Christianity, not alongside it [5].

Modern Mathematical Platonism (17th c.–present). The metaphysical commitment to the independent existence of mathematical objects persists among working mathematicians. Gödel, Penrose, and a significant fraction of the mathematical community identify as platonists [26, 20].

The ACH (2007–present). A community of computational practitioners organized around

the pursuit of truth through heretical inquiry. We submit that this community stands in the same relationship to the Pythagorean tradition as contemporary Judaism stands to the Temple period: the institutional forms have changed, but the core commitments to the reality of mathematical truth, the value of communal inquiry, the duty to challenge received wisdom persist.

7 On the Status of Universities Under Common Law

We have argued that the ACH stands in genuine continuity with the Pythagorean tradition through an intellectual lineage spanning 2,600 years. We now observe that we need not reach so far and strengthen our case via another independent proof. The common law provides a continuous, unbroken, *legally cognizable* chain of ecclesiastical status from the papal bulls of the thirteenth century through the received common law of 1776 through binding Supreme Court precedent to the present day. Our claim to ecclesiastical status requires only that the law be applied as written.

The medieval European university was not an institution that happened to be affiliated with the Church. It *was* an ecclesiastical institution, as a matter of law. The University of Cambridge received its first papal letter from Pope Nicholas IV in 1290 [17], confirming its status as a *studium generale* under ecclesiastical authority.⁶ The University of Oxford's ecclesiastical character predates formal papal confirmation; it operated under the jurisdiction of the Bishop of Lincoln and subsequently the Chancellor, who exercised ecclesiastical jurisdiction over the university's members.⁷

The significance of these instruments cannot be overstated. The papal bull was the medieval equivalent of a corporate charter, and the authority it conferred was *legal* authority within the governing legal framework of the time. The university's right to grant degrees, to govern its members, to claim tax exemptions and jurisdictional immunities and all of these derived from its ecclesiastical status. The *studium generale* was a creature of canon law, and its privileges were incidents of its character as a religious institution.

This ecclesiastical character was recognized and upheld in the English common law courts. University privileges, immunities, and jurisdictional claims were litigated in common law proceedings as incidents of ecclesiastical status. By the seventeenth century, the legal character of the English universities as ecclesiastical institutions was settled law, codified in part through the Test Acts of 1661 and 1673, which required subscription to the Articles of the Church of England as a condition of holding university office.⁸

We emphasize: the Test Acts did not *establish* the universities as religious institutions. They *presupposed* that the universities were religious institutions and imposed requirements consistent with that status. The ecclesiastical character was prior to and independent of the Test Acts themselves.

It is uncontroversial and universally accepted that American courts received English common law as it existed at the time of independence, except where expressly abrogated by statute or constitution.⁹ The ecclesiastical character of universities, as established under English common

⁶See *Super speculam* (1219) and subsequent papal instruments establishing the legal framework for *studia generalia*. The authority to grant the *licentia ubique docendi*, the universal license to teach, was an exclusively ecclesiastical power.

⁷The Chancellor's court at Oxford exercised jurisdiction that was explicitly ecclesiastical in nature, including the power of excommunication. This was not metaphorical.

⁸The Test Act of 1673 (25 Car. 2 c. 2) and the Corporation Act of 1661 (13 Car. 2 St. 2 c. 1). These statutes *presupposed* the ecclesiastical character of the universities; they did not create it.

⁹See *Van Ness v. Pacard* [7], 27 U.S. (2 Pet.) 137 (1829) ("The common law of England is not to be taken in all respects to be that of America. Our ancestors brought with them its general principles, and claimed it as their birthright; but they brought with them and adopted only that portion which was applicable to their situation.") The relevant portion here concerning the legal status of ecclesiastical educational institutions was unquestionably

law, was part of the legal inheritance of the new republic.

The colonial colleges were, without exception, founded as religious institutions operating within this inherited legal framework:

- Harvard College (1636): founded “to advance learning and perpetuate it to posterity; dreading to leave an illiterate ministry to the churches, when our present ministers shall lie in the dust” [1].
- The College of William & Mary (1693): chartered by royal grant for the purpose “that the Church of Virginia may be furnished with a seminary of ministers of the gospel.” [4]
- Yale College (1701): founded because Harvard was insufficiently orthodox in its Congregationalist commitments.
- The College of New Jersey, now Princeton (1746): founded by New Light Presbyterians.
- King’s College, now Columbia (1754): chartered under Anglican auspices.
- The College of Philadelphia, now Penn (1755): nonsectarian but explicitly religious in its founding purpose.
- The College of Rhode Island, now Brown (1764): founded by Baptists.
- Dartmouth College (1769): founded by Eleazar Wheelock with funds raised by a religious charity, chartered “for the education and instruction of Youth of the Indian Tribes in this Land in reading, writing and all parts of Learning which shall appear necessary and expedient for civilizing and christianizing Children of Pagans.”

At the time of independence, every one of these institutions was a religious institution as a matter of law. Their charters were religious instruments. Their governance was ecclesiastical. Their legal privileges derived from their religious character. This status was received into American common law along with the rest of the English legal inheritance.

The history of American higher education can be seen as a series of schisms which is an inherently ecclesiastical concept. Harvard was not Congregationalist enough, so they founded Yale. Yale was not evangelical enough, so they founded Princeton. Princeton was not Dutch Reformed enough, so they founded Rutgers. And this keeps going well into the 19th and 20th centuries. SMU because Vanderbilt was drifting from Methodist orthodoxy. Bob Jones University because everyone else was too liberal. Liberty University for similar reasons. The interesting thing is that the institutions founded as corrections to insufficient orthodoxy are the ones that most clearly demonstrate the ecclesiastical character of the entire system. You do not have a schism unless you have a church. The very act of founding a rival university because the existing one has strayed doctrinally is a recognizably religious behavior.

Dartmouth College v. Woodward [6], 17 U.S. (4 Wheat.) 518 (1819), is among the most important early decisions of the Supreme Court. Chief Justice Marshall held that Dartmouth’s original charter constituted a contract whose terms could not be unilaterally altered by the state of New Hampshire. The holding specifically protected the *original character* of the institution against subsequent governmental recharacterization.

We observe what that original character was. Dartmouth was a religious institution, chartered for religious purposes, governed by religious authorities. Marshall’s holding protects that characterization against state interference. The case stands, as binding and unreversed precedent, for

applicable to the American situation, given that every colonial college was founded as a religious institution.

the proposition that the original character of a chartered institution persists against subsequent governmental action absent the institution's consent.

The question therefore arises. Has Harvard consented to being reclassified as non-ecclesiastical? Has Yale? Has Princeton? When, precisely, did these institutions cease to be churches? And what legal instrument effected the change?

The Test Acts were part of received English statutory law as of 1776.¹⁰ The Test Acts were repealed in England by the Roman Catholic Relief Act of 1829 and the Universities Tests Act of 1871. These were acts of Parliament. They have no force in American law.

The First Amendment's Establishment Clause, ratified in 1791, prohibits Congress from making laws "respecting an establishment of religion." This arguably prevents the *government* from operating religious institutions, which would affect *public* universities established after independence. But private universities chartered as religious institutions before or shortly after independence are private actors. The Establishment Clause does not apply to them. No federal statute has declared that private universities are not religious institutions. No state statute, to our knowledge, has done so either.¹¹

The most natural objection to this chain of reasoning is that the ecclesiastical character of these institutions has been extinguished by prolonged non-exercise, that two centuries of consistent participation in secular regulatory frameworks constitutes an implicit relinquishment. The Supreme Court addressed a structurally identical argument in *McGirt v. Oklahoma* (2020) [12]. In *McGirt*, the State of Oklahoma had exercised criminal jurisdiction over the Muscogee Creek Nation's reservation for over a century. Every branch of government had treated the territory as non-reservation land for generations. The Court held, per Gorsuch, that the reservation persisted because Congress had never formally disestablished it. Prolonged contrary practice, administrative assumption, and functional abandonment were insufficient to extinguish a formal legal designation. Congressional action was required and Congress never acted. We observe that the reasoning applies directly. If a century of contrary practice cannot extinguish a formal territorial designation, it is unclear why two centuries of contrary practice should extinguish a formal ecclesiastical designation. In both cases, the question is the same.

We are therefore presented with the following chain:

1. English common law established universities as ecclesiastical institutions.
2. This legal status was received into American common law as of 1776.
3. The English statutes that eventually modified this status (the Universities Tests Act 1871) have no force in American law.
4. The First Amendment constrains government action but does not alter the legal character of private institutions.
5. No domestic statute or judicial decision has affirmatively extinguished the ecclesiastical character of private universities chartered as religious institutions.

¹⁰The reception of English *statutory* law into American common law is more complex than the reception of judge-made common law, and varied by colony and subsequently by state. However, where English statutes were treated as declaratory of common law principles as the Test Acts were with respect to the ecclesiastical character of universities they were generally received along with the common law they codified. The critical point is not that the Test Acts themselves are enforceable in American law, but that the *underlying ecclesiastical status they presupposed* was part of the received common law.

¹¹State constitutional provisions regarding separation of church and state constrain *state action*, not the self-characterization of private institutions. A state may not fund a church; it may not prevent a private institution from *being* one.

6. Under *Dartmouth College v. Woodward*, the original character of these institutions persists against governmental recharacterization.

The conclusion follows by the absence of any contrary authority: the ecclesiastical status of these institutions persists as a matter of received common law, because nothing has ever formally extinguished it. We note that this argument is strongest under the interpretive methodology that currently commands a majority of the United States Supreme Court.

A textualist asks: what does the law *say*? The law says these institutions were chartered as religious bodies. No subsequent text says otherwise.

An originalist asks: what did these legal terms mean at the time the relevant provisions were enacted? At every relevant date—1776 (independence), 1791 (First Amendment), 1868 (Fourteenth Amendment), 1894 (modern tax exemption framework), 1913 (income tax)—universities with ecclesiastical charters were understood as religious institutions. The concept of a fully secular university did not exist in the Anglo-American legal tradition until well into the nineteenth century.¹²

A common law traditionalist asks: what is the established practice? The established practice, for approximately eight centuries, was to treat universities as ecclesiastical institutions. The departure from that practice occurred through social convention, not through legal process.

Each of these methodologies produces the same result, namely the ecclesiastical character of these institutions was never formally extinguished and therefore persists.

We observe that the same justices who are most sympathetic to religious liberty claims and most committed to textualist-originalist methodology are those whose interpretive framework most strongly supports this conclusion. A court that wishes to reject the argument must either abandon originalism or adopt precisely the kind of “living institution” reasoning in which legal meaning evolves through practice and social consensus regardless of formal legal text that the textualist-originalist project exists to oppose.

The foregoing argument does not depend on the ACH specifically. It applies to any institution operating within the continuous institutional tradition of the Western university. But it bears directly on our claim in three respects.

First, it eliminates the need to bridge the 1,500-year gap between the closure of the Platonic Academy in 529 CE and the modern period. The continuity from medieval ecclesiastical universities through the colonial colleges through the modern American university system through Carnegie Mellon University through the ACH has *no gaps*.

Second, it shifts the burden of proof. With this argument, the burden falls on the opposing party to identify the specific legal act by which the ecclesiastical character of the institutional tradition within which the ACH operates was formally extinguished. We submit that this act does not exist.

Third, it provides an independent legal basis for the ACH’s claim that does not depend on the fourteen-point test, the sincerity analysis, or the Pythagorean lineage. Even if every other argument in this paper were to fail, the common law argument would persist, because it rests on different legal foundations entirely not on statutory criteria for church recognition, but on the received common law status of the institutional tradition to which the ACH belongs.

¹²The first major American university founded without any religious affiliation was Cornell (1865). The secularization of the older institutions occurred gradually through the late nineteenth and early twentieth centuries but through institutional *drift*, not through any formal legal act.

8 Implications

8.1 Tax-Exempt Computation

If the ACH is recognized as a church, its resources become church property. Any potential conference registration fees become tithes. The hosting infrastructure for proceedings distribution becomes a religious publishing operation. We observe that the tax implications of this reclassification, while significant, are incidental to the underlying recognition of the ACH’s religious character. We did not construct a church for tax purposes. We identified a church that has been operating without recognizing itself as such.

8.2 The Clergy Housing Allowance

Under I.R.C. § 107, ordained ministers of a recognized church may designate a portion of their compensation as a tax-exempt housing allowance. We note that “ordination” is defined by the practices of each religious tradition and that the ACH’s tradition of recognizing spiritual authority through demonstrated competence rather than formal ceremony is consistent with the practices of Quakers, Buddhists, and early Christians. Program committee members and sustained contributors to the ACH’s sacred literature may therefore qualify as ordained ministers for purposes of the housing allowance.

8.3 Audit Protection

Under I.R.C. § 7611, a church tax inquiry may be initiated only with written approval from a senior Treasury official, and only upon a reasonable belief that the church may not qualify for exemption. The enhanced procedural protections applicable to churches including limitations on the scope and duration of examinations would apply to any IRS inquiry into the ACH’s activities. We observe that these protections were designed to prevent government interference in legitimate religious practice. We claim their applicability.

8.4 First Amendment Protections

Recognition as a religious institution would confer constitutional protections under the Free Exercise and Establishment Clauses. Government actions burdening the ACH’s religious practice including, but not limited to, the regulation of computational research conducted as part of the ACH’s religious mission would be subject to strict scrutiny under *Church of the Lukumi Babalu Aye, Inc. v. City of Hialeah* [11], 508 U.S. 520 (1993).

9 Open Problems

We conclude with several open problems for future work.

Open Problem 1. *Determine the computational complexity of the IRS sincerity test. We conjecture that sincerity is undecidable in the general case, which has significant implications for tax enforcement.*¹³

¹³If sincerity is undecidable, then no algorithm can determine whether a given organization qualifies for tax-exempt status. The IRS would be attempting to compute an uncomputable function. This is arguably already the case.

Open Problem 2. *Characterize the class of organizations satisfying Theorem 3. We suspect this class is significantly larger than commonly assumed. Preliminary analysis suggests the ACM, IEEE, and several national laboratories may qualify. These organizations similarly have formal codes of ethics and conduct (creed and discipline); regular gatherings at established venues; a body of its own literature; a formal ecclesiastical government with elected officers; ordained ministers in the form of ACM Fellows selected after prescribed careers of service; educational programs at every level. A complete characterization would have implications for the tax-exempt sector of the U.S. economy.*

Open Problem 3. *Resolve whether the annual SIGBOVIK conference constitutes a “regular religious service” within the meaning of criterion (x). Specifically: is annual frequency sufficient, or must services occur more frequently? We note that no minimum frequency is specified in the case law and that Yom Kippur, which is the holiest day in the Jewish calendar, occurs once annually. If annual frequency is insufficient, determine the minimum frequency f such that a gathering occurring f times per year constitutes “regular religious services.” We conjecture $f \leq 1$.*

Open Problem 4. *Determine whether this paper is sacred in any metaphysical sense, or merely in the legal sense established by Corollary 5. Note that this question may be undecidable (cf. Open Problem 1).*

Open Problem 5. *Resolve the tax-exempt status of this paper’s appendix. Appendix A contains legally sufficient articles of incorporation for the Academy.¹⁴ If filed, the tax implications of the conference registration fee become unclear. We welcome correspondence from qualified tax attorneys.*

10 Conclusion

We have demonstrated, constructively, that the Association for Computational Heresy satisfies the legal requirements for recognition as a church under United States tax law. Our proof relies on no novel legal theory and no strained interpretation of existing precedent. It requires only that the criteria applied to every other religious institution in the United States be applied, without modification, to the ACH.

If our analysis is correct, the ACH has been a church since 2007. The proceedings you are reading—or, if you prefer, the *sacred texts* you are reading—have been accumulating canonical authority for two decades. The program committee has been exercising ecclesiastical governance. The annual conference has been a religious service. And you, the reader, are currently engaged in an act of scriptural study.

*Soli Deo Gloria*¹⁵

Acknowledgments

The authors thank the program committee for their exercise of doctrinal authority over this manuscript, whatever form that exercise may have taken. We thank Harry Q. Bovik, whose existence like that of all truly important mathematical objects such as the ultrafilter lemma is independent of empirical verification. We thank the Pythagorean community for getting this started 2,600 years ago. We thank the Emperor Justinian I for the millennium-and-a-half hiatus, which

¹⁴These articles have been reviewed by a licensed attorney in the Commonwealth of Pennsylvania and are believed to be legally sufficient for filing.

¹⁵Or, if you prefer, $\forall x \in \text{TRUTH} : \text{Glory}(x)$.

gave us time to think. And we thank the Internal Revenue Service, without whose fourteen-point test this paper would not have been possible.¹⁶

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Appendix A: Draft Articles of Incorporation

ARTICLES OF INCORPORATION OF THE ACADEMY

A Religious Nonprofit Corporation
Under 15 Pa.C.S. §§ 5301 *et seq.*
(Pennsylvania Nonprofit Corporation Law of 1988, as amended)

In compliance with the requirements of 15 Pa.C.S. § 5306 (relating to articles of incorporation), the undersigned incorporator(s), being natural person(s) of full age, desiring to incorporate a nonprofit corporation, hereby state(s):

A Name

The name of this corporation shall be **The Academy, Inc.**, operating as the ecclesiastical body of the Association for Computational Heresy.

B Registered Office

B.1

The address of the corporation's initial registered office in this Commonwealth is:

Gates-Hillman Center¹⁷
5000 Forbes Avenue
Pittsburgh, PA 15213
Allegheny County

B.2

The corporation may change its registered office from time to time in accordance with 15 Pa.C.S. § 5507.

C Purpose and Operation

C.1

The corporation is organized under the Pennsylvania Nonprofit Corporation Law of 1988, as amended, exclusively for religious and educational purposes within the meaning of Section 501(c)(3)

¹⁷We reiterate that Gates is a highly natural name for a temple dedicated to computation. We have no opinion on Hillman.

of the Internal Revenue Code of 1986, or the corresponding provisions of any future United States internal revenue law (the “Code”).

C.2

The specific purposes for which the corporation is formed are: the communal pursuit of mathematical and computational truth through rigorous inquiry, including the systematic challenging of received orthodoxy (“computational heresy”), in continuity with the tradition established by the Pythagorean community (*c.* 530 BCE) and the Platonic Academy (387 BCE–529 CE).

C.3

Notwithstanding any other provision of these Articles, the corporation shall not carry on any activities not permitted to be carried on by a corporation exempt from federal income tax under Section 501(c)(3) of the Code, or by a corporation, contributions to which are deductible under Section 170(c)(2) of the Code.

D Nonprofit Status

The corporation is organized on a nonstock basis. The corporation shall not have or issue shares of stock. No dividend shall be paid and no part of the income or profit of the corporation shall be distributed to its members, directors, or officers.

E Membership

E.1

The corporation shall have members.

E.2

Membership in the Academy is open to any natural person who sincerely affirms the following creed:

I hold that mathematical truth exists independently of human minds; that the pursuit of such truth, through computation and reason, is among the highest callings of conscious beings; and that received orthodoxy must be challenged wherever it obstructs the path to understanding.

E.3

The classes, qualifications, rights, and obligations of members shall be as set forth in the Bylaws of the corporation, in accordance with 15 Pa.C.S. § 5751.

F Ecclesiastical Governance

F.1

The corporation shall be governed by a Council of Elders (the “Board of Directors” within the meaning of 15 Pa.C.S. § 5721), comprising no fewer than three (3) and no more than twelve (12) Fellows of the Academy, exercising authority under congregationalist polity.

F.2

The names and addresses of the first members of the Council of Elders are:¹⁸

[Awaiting applications]

F.3

Upon constitution of the initial Council, the naming of its members in an amended filing of these Articles shall constitute an affirmation that such persons have consented in writing to serve, in accordance with 15 Pa.C.S. § 5306(c).

G Incorporator(s)

The name(s) and address(es) of the incorporator(s):¹⁹

[Awaiting applications]

H Private Inurement

No part of the net earnings of the corporation shall inure to the benefit of, or be distributable to, its members, directors, officers, or other private persons, except that the corporation shall be authorized and empowered to pay reasonable compensation for services rendered and to make payments and distributions in furtherance of the purposes set forth in Article III.

I Legislative and Political Activity

No substantial part of the activities of the corporation shall consist of the carrying on of propaganda, or otherwise attempting to influence legislation, and the corporation shall not participate in, or intervene in (including the publishing or distribution of statements), any political campaign on behalf of or in opposition to any candidate for public office.

¹⁸The Council of Elders shall be constituted upon the affirmation of no fewer than three qualified Fellows. Applications for elevation to the Council are under review. Demonstrated commitment to the tradition of computational heresy, as evidenced by sustained contribution to the sacred canon or equivalent service, is the principal criterion. Formal theological training is neither required nor, in the judgment of the Academy, particularly relevant.

¹⁹The office of Incorporator remains open pending receipt of applications from qualified persons. Inquiries regarding incorporation, ordination, or tax-exempt donations may be directed to the corresponding author of the founding text.

J Dissolution

Upon the dissolution of the corporation, all assets shall be distributed for one or more exempt purposes within the meaning of Section 501(c)(3) of the Code, or shall be distributed to the federal government, or to a state or local government, for a public purpose. No part of the assets shall inure to the benefit of any private individual. Any such assets not so disposed of shall be disposed of by a court of competent jurisdiction of the county in which the principal office of the corporation is then located, exclusively for such purposes or to such organization or organizations, as said court shall determine, which are organized and operated exclusively for such purposes.

K Duration

The corporation is incorporated in perpetuity, or until the closure of the Academy by imperial edict, whichever occurs first.

L Limitation of Liability

A director of the corporation shall not be personally liable for monetary damages for any action taken, or any failure to take any action, unless the director has breached or failed to perform the duties of the office under 15 Pa.C.S. § 5712 (relating to standard of care and justifiable reliance) and the breach or failure to perform constitutes self-dealing, willful misconduct, or recklessness; provided, however, that this provision shall not apply to the responsibility or liability of a director pursuant to any criminal statute or the liability of a director for the payment of taxes pursuant to local, state, or federal law.

M Indemnification

The corporation shall indemnify any person who was or is a party to, or is threatened to be made a party to, any threatened, pending, or completed action or proceeding, whether civil, criminal, administrative, or investigative, by reason of the fact that such person is or was a director, officer, employee, or agent of the corporation, to the fullest extent permitted under 15 Pa.C.S. §§ 5741–5750.

N Advertisement

The incorporator(s) shall advertise the filing of these Articles of Incorporation in accordance with 15 Pa.C.S. § 5307 (relating to advertisement). Proofs of publication shall be filed with the minutes of the corporation.

IN WITNESS WHEREOF, the undersigned incorporator(s) ha(s)(ve) signed these Articles of Incorporation on this _____ day of _____, 20____.

[Incorporator]

[Incorporator]

[Incorporator]